SMA Monitoring API

Cover Sheet

Partner company*	
Company Name	
Street, No	
City, Zip-Code	
Country	Germany
Company legal data*	
Register	Germany/Australia/Switzerland
RegNr, City	
VAT number	

Partner contact persons*	
Business responsible	
Title	Mr
Name, Surname	
Position	
Phone	
Email	
Technical responsible	
Title	Mr
Name, Surname	
Position	
Phone	
Email	

Fields of activity – segments			
	Monitoring O&M		GRID: TSO, DSO
	Display solutions		Energy Trading
	Forecast solutions		Non-Commercial
	GRID solutions		Other
	Investor solutions		

Further statistic company data	
Employees	<10 empolyees
Core segment	Residential
Markets	Germany/Australia/Switzerland

* marked fields are mandatory

Application details and API-usage forecast In order to setup your client application for your API-Key, please the following information	
User display information (consent screen) *	
App name	
App purpose/ Description for SMA users	
App Logo URL e.g. .jpg, .svg	
T&Cs URL	
DataPrivacy URL	

On-screen / OAUTH code grant flow only Check https://developer.sma.de/api-access-control.html	
Redirect URL	

API usage forecast	
Average usage	
Peak usage	

SMA PV-plant portfolio	
Plant #	Location, e.g. Worldwide or Europe
	Germany/Australia/Switzerland

Order for SMA Monitoring API * The contract will be legally concluded by SMA sending the respective API-Key to the Partner company. Integral part of the contract with SMA are the following attached terms and conditions	
Name	
Place, date	
Signature	

SMA Monitoring API

Contract

between

SMA Solar Technology AG
Sonnenallee 1
34266 Niestetal
Germany

- hereinafter referred to as SMA -

and

Contractual Partner
(according to information on the contract's cover sheet)

- hereinafter referred to as "Partner" -

- hereinafter both also referred to individually as "Party" or jointly as "Parties" -

Preamble

SMA develops, produces and sells PV inverters and PV system monitoring and energy management systems.

SMA provides a portfolio of cloud-based, constantly enhanced RESTful application programming interfaces (APIs) with different functional scopes & resources to interested Partners which are offered as B2B Software-as-a-Service (SaaS) propositions.

To gain access to SMA APIs and related, authorized PV-systems/devices registered and hosted on SMA backends, the Partner must use the client credentials provided by SMA which may include multiple APIs/scopes and/or role information.

In order to consume SMA APIs involving individual PV-systems/devices, Partner applications must always be entitled by system owner permission/authorization for the requested API access scope(s).

Given the above, the following has been agreed upon between the Parties:

§ 1 Subject matter of the Contract

1. SMA enables the Partner to use the SMA Monitoring API (hereinafter referred to as "API") during the term of this contract under the conditions of this contract, subject to remuneration in accordance with § 5.

2. §2 (SMA Services) and the technical specification in Annex 1 (API specification) describe the functional scope of the API in the latest released version.

3. Partner shall use the API exclusively under the conditions determined in this contract and for the purpose set forth in the §1.1 and §2 ("SMA Services"). All purposes not listed here require prior written consent from SMA.

4. The Partner may only transfer the data which the Partner retrieves via the API to a third party with the prior written consent of SMA (regardless of whether it is free of charge or fee-based), except for permitted subcontractors of the Partner for technical implementation/realization. Permitted subcontractor which do not require a dedicated written consent of SMA are those who are directly involved in providing partner services, e.g. application, web portal or mobile app development companies or virtual power plant (VPP) platform providers. Partner is responsible for the acts and omissions of each permitted subcontractor.

5. The API was developed by SMA and is protected by intellectual property rights and copyright laws. SMA possesses and retains all use and distribution rights and only grants the Partner a non-exclusive limited right to use the API. The right of the Partner to use the API is limited to the use in accordance with this contract and particularly limited to the scope of functionality and use in accordance with Annex 1 (API specification). The right of use can neither be transferred nor sublicensed.

6. SMA reserves the right to adjust the API specification (Annex 1) and in particular introduce new requirements. Any material change of the API specifications (a MAJOR release) which affects the use or usability of the API and require a new integration by the Partner will be published on the website which is mentioned in Annex 1. In this case, SMA will provide detailed information, including the release date reasonably prior to the release, in any event at least 12 weeks in advance, in order to enable the seamless integration by the Partner. In case of MAJOR releases, the Partner has the right to terminate this contract extraordinarily with effect at the respective release date. For the avoidance of doubt, this § 1.6

does not apply to PATCHES and MINOR releases which provide enhancements.

§ 2 SMA Services

1. SMA provides the Partner with the API exclusively for monitoring the operation of PV systems and connected devices using third-party/partner applications. The API provides data and functions which are consumed by Partner's applications (e.g. web portals and mobile apps) for presentation reasons, to generate energy data reports and/or for advanced analytics purposes.

2. The Partner application's API access is authenticated using a ClientID assigned by SMA as well as a ClientSecret communicated to the Partner. The access authorization to a system owner's specific PV system is granted using the client credentials and user tokens that the Partner application must transfer to the API on each request.

3. SMA is entitled to temporarily or permanently block the API use for certain PV system groups or devices in justified cases (e.g., no device updates for end devices after end of life). If the API use is permanently blocked, the Partner has the right to terminate this contract extraordinarily with immediate effect unless the respective systems and devices are not relevant for his use of the services under this contract.

4. At the express request of the PV system owner, the API will be blocked for the respective systems or devices indicated by the PV system owners.

§ 3 Duties of the partner

1. The Partner is obligated to use the API only in accordance with §1.4.

2. The Partner is obligated to use the ClientID assigned by SMA in accordance with Annex 1 (API specification) exclusively for the service described on the contract's cover sheet.

3. The Partner shall ensure that the express consent of the PV system owner has been obtained to transmit its system data to the Partner, to archive the PV system owner's consent according to data protection law and to provide evidence of the PV system owner's consent thereof upon SMA's request.

4. The Partner is obligated to keep the authentication information for the API confidential and not forward it to unauthorized third parties. In the event of loss or misuse, SMA must be informed immediately. As soon as SMA becomes aware thereof, SMA is authorized to take suitable countermeasures up to and including blocking the Partner's access.

5. The Partner releases SMA from any and all claims, penalties, and obligations toward third parties caused by the non-fulfillment of the obligations of the Partner arising from this contract.

§ 4 Brand use by the Partner

1. For the duration of the contractual relationship, the Parties are authorized to use the trademarks/logos of the other Party as part of the fulfillment of this contract and limited to this purpose. To this end, for the term of the contract, the Parties are mutually granted a simple, non-exclusive and non-transferable right to use the trademarks and logos. Any commercial representation, particularly the use of trademarks and logos, or public communication measure always requires the written consent of the other Party prior to publication.

2. The responsibility under competition law for a promotional appearance or other communication measures lies with the requesting party. The other Party is released from third-party claims in the event of a claim under competition law.

§ 5 Remuneration and payment terms

1. SMA does not charge a connection or setup fee for the Partner's ClientID.

2. SMA charges a monthly base fee for the provision of the API, per monitored PV system, for which data is accessed in the respective month. The remuneration is based on the chosen API edition and the AC power rating of the PV system, as described under §5.2, §5.3 and §5.4. For PV systems with a power capacity between 20 and 999 kWac, the base fee consists of a base price and a kWac factor, which is calculated as described under § 5.3.

3. The following net base fees are annual costs per monitored PV system, are calculated pro-rata and are subject to the respective statutory value-added tax.

System size (kWac)	Base price	kWac factor
1-19	€12	None
20-99	€12	+ €0.09*kWac
100-499	€15	+ €0.06*kWac
500-999	€25	+ €0.04*kWac
>1.000	€65	None

Example calculation for a 50 kWac system:
Base fee of €12 + €4,5 factor remuneration (50 kWac*€0.09) = €16,5/year

4. AC power-rating factored-in for the calculation is based on the data stored in the SMA system.

5. SMA deducts the base fee on a monthly basis. Each month, based on the system IDs (SMA plant IDs) used in the API requests, it is determined which PV systems the Partner used the SMA Monitoring API for, and the base fees for these systems are calculated accordingly.

6. SMA may invoice the fee monthly or quarterly, in each case for the past month or quarter. SMA may freely change from monthly billing to quarterly billing or vice versa, provided that a change of the billing procedure shall be notified at least three months in advance. In case of a quarterly billing, each of the following periods is considered a billing quarter: January 1 to March 31, April 1 to June 30, July 1 to September 30, and October 1 to December 31.

7. Payment must be made by the 60th business day after invoicing for the billing month or quarter without deduction.

8. If the Partner does not make the quarterly payment on time despite timely invoicing by SMA, SMA is entitled to deactivate or suspend the access to the interfaces and provision of data during the period of payment default, if SMA has advised the Partner twice in writing about the payment default (outstanding payment including any default interest owed) and the payment is not received in SMA's account within ten days of the second request for payment or notice of payment default. Other rights of SMA, particularly to compensation for damage and termination, will not be affected if this right is asserted.

§ 6 Statutory warranty and liability

1. SMA warrants only the correct processing and forwarding of the data in SMA Sunny Portal and/or Sunny Portal powered by ennexOS to which the data provision to the Partner relates. SMA provides no guarantee for the accuracy, currentness, correctness, completeness or quality of the data as part of data provision. The reliability of this data depends predominantly on the data transmitted from the PV systems (i.e., the PV systems equipped with SMA inverters and data communication devices) to SMA Portals. This data is primarily generated by the PV system owner/operator. SMA cannot determine whether this data was transmitted correctly or is otherwise correct. SMA bears no responsibility for this. SMA expressly advises the Partner that the information available in the SMA Portals may be incorrect, in particular if the configuration and set-up of the PV systems to transmit to the SMA Portal data systems was not performed or updated correctly.

2. SMA expressly states that the data provided via the interface is solely for the information of the Partner and, in particular, is not intended as the basis of a settlement of accounts or to produce evidence of claims concerning energy feed-in towards grid operators.

3. The availability set forth in § 8 pertains only to the IT systems that SMA can influence. Downtimes of the Partner's IT systems are not counted when calculating downtimes of the SMA IT systems.

4. SMA's liability – irrespective of its legal basis – shall be limited to damages caused by willful intent or gross negligence. However, SMA is liable for simple negligence in case of damages which result from the breach of material contractual obligations (i.e. an obligation which is material for the performance of the contract and compliance with which the other party regularly expects and may expect) whereas, in this case, SMA's liability shall be limited to typical damages which SMA could have foreseen as a possible consequence of such breach at the time of entering into this contract.

5. The limitations of liability pursuant to § 6.4 do not apply

   - in case of damages to life, body or health,
   - if and to the extent SMA has maliciously deceived (*arglistig verschwiegen*) a defect,
   - if and to the extent SMA has assumed a guaranty for the quality of goods, or
   - for claims of the Partner under the German Product Liability Act (*Produkthaftungsgesetz*).]

§ 7 Confidentiality and data protection

1. The Parties shall treat all information, business activities and documentation ("Information") of which they become aware in connection with this contract confidentially with regard to third parties, unless this information has already been made generally known by other means. This obligation also remains applicable after termination of this contract for a period of 5 years. SMA and the Partner shall impose a corresponding obligation on their employees affected by this contract. SMA is entitled to pass Information on to its affiliated companies and subcontractors, provided that they are bound by a confidentiality obligation equivalent to this provision.

2. If the Parties have entered into a separate non-disclosure agreement, according to which the scope of confidentiality exceeds the abovementioned scope, such separate confidentiality agreement shall remain unaffected.

3. The Parties shall observe the legal regulations for the protection of personal data, including with regard to the corresponding data of the other Party or affiliated third parties.

4. The Parties shall obligate the employees to be deployed to the duty to observe confidentiality in writing. If according to the BDSG, a Data Protection Officer is to be appointed for one of the Parties, the Party declares to have informed the Officer about the content of the order.

5. The requirement for the data provision using the API is the consent of the PV system's respective owner granted to the Partner for the transmission of its data for analyzing power generation and for displaying the results of the analysis. Approval entails granting user rights for the PV system in question.

6. Upon SMA's request, the Partner must present the respective system owner's consent specified in § 7.5 in order to share its data.

7. If the system owner revokes the user rights, which it may do at any time, it will no longer be possible to access this PV system via the API interface.

8. The Partner shall store data only under consideration of the applicable provisions under data protection law.

9. Upon termination of the contract, all data received from SMA except data of PV-Systems transmitted via the API and stored with the Partner must be completely and irrecoverably erased.

§ 8 Capacity of the API

1. Over the year, SMA provides a total availability of 99.5% over 24 hours in each month in accordance with the SMA Service Level Agreement attached as Annex 2. The requirement here is that the respective PV systems are properly linked to the network.

2. Usage of the API is subject to meaningful consumption and Service Throttling (Rate Limits). Therefore, the amount of commands which will be supported and processed in a given time interval is limited in view of the update-intervals of the SMA systems and devices concerned, e.g. ennexOS systems have a data-refresh rate of 5 minutes and meaningful-requests must not be inferior of this interval.

3. SMA may introduce rate limits for clients in consideration of a meaningful consumption by Partner. As of March 2021, no rate limits have been configured for API-consuming clients.

§ 9 Term of the contract, notice of termination

1. From the date of signature, this contract is valid for two years, and it is automatically extended for a further year if it is not terminated by either of the parties at least three months before it expires.

2. Either Party may terminate this contract without notice, if the other Party:

   a) significantly breaches this contract and such breach is not remedied within 10 calendar days after this Party was informed about the breach; in the event of payment default, the 10-day grace period does not start until the second payment request (see §5) or

b) is largely unable to meet its obligations under this contract (after the other Party has notified the Party who violates its duties of this in writing) and, within 30 calendar days of receiving such notification from the other Party, has not remedied the situation.

c) If a Party terminates the contract without notice for due cause, this Party may have a claim for compensation of damage against the other Party who violated the contract. SMA's liability shall be in accordance with § 6.

3. The termination of the contract shall be done in writing.

4. § 7 and §10 remain unaffected by the termination of this contract.

5. In the event of termination, all documents, data (except data of PV-Systems transmitted via the API) and other materials (hereinafter "Materials") that one of the Parties has provided to the other must be returned by the receiving Party, provided that the receiving Party shall not be obliged to return, delete or destruct such data or Material which it is obliged to retain in accordance with applicable law. The receiving Party has no right of retention to these Materials. The right to return also applies to any copies of Materials. Data transmitted remotely and copies of information on data carriers provided must be permanently deleted or destroyed by the receiving Party on request. The deletion or destruction must be confirmed in writing. The deletion or destruction may take place no later than three months later in case existing and pending contracts must be verified with the corresponding data.

§ 10 Miscellaneous

1. Unless otherwise agreed in this contract, all rights and duties under this contract can be assigned to third parties only with the prior written consent of the other Party. Affiliated companies of the Parties under Section 15 AktG are not third parties under this contract if they do not compete with the other Party.

2. No collateral agreements to this contract have been made.

3. Changes to this contract can be made only upon mutual agreement.

4. Changes and additions to this contract must be made in writing. This requirement of written form may be waived only in writing.

5. If a provision of this contract is or becomes ineffective, or if this contract contains any loopholes, the other provisions of the contract shall not be affected thereby. Rather, the ineffective provision shall be replaced with one that is legally valid and has an economic intent that most closely matches the meaning and purpose of the original; the same applies to any loopholes.

6. The annexes as amended are an integral part of this contract. A change or addition to the annexes requires the consent of the contracting Parties (except Annex 1 (API specification) in compliance with §1.8).

7. This contract is subject exclusively to the laws of the Federal Republic of Germany.

8. The exclusive place of jurisdiction for all disputes arising from or in connection with this contract shall be Kassel (Germany), unless legislation strictly prescribes another place of jurisdiction.

§ 11 Annexes

1. Annex 1: API specification https://sandbox.smaapis.de/monitoring/index.html

2. Annex 2: Service Level Agreement

SMA Monitoring API

Annex2: Service Level Agreement

Introduction

This Service Level Agreement ("SLA") refers to the SMA Monitoring-API Contract.

If SMA does not achieve and maintain the Service Levels as described in this SLA, Partner may be eligible for a credit towards a portion of the monthly service fees as described in §3 and §4.

§1 General terms

"Application" means one of the applications authorized to use the SMA Monitoring-API.

"Applicable Monthly Period" means, for a calendar month in which a Service Credit is owed.

"Applicable Monthly Service Fees" means the total fees actually paid by Partner for a Service that is applied to the month in which a Service Credit is owed.

"Downtime" is defined as period of time when the Service is not available as measured in SMA data centers, provided that Partner uses the methods of access, authentication and tracking methods documented in the API-Specification (Annex 1 to the SMA Monitoring API Contract) and API Access Control document. Downtime does not include Scheduled Downtime and Security Incident-related Downtimes. Downtime does not include unavailability of a Service due to limitations described below in §5 Limitations.

"Downtime Period" means a period of five consecutive minutes of Downtime. Intermittent Downtime for a period of less than five minutes will not be counted towards any Downtime Periods. Downtime is measured as the total number of minutes (>5min per downtime period) in which the Service is unavailable during one month.

"Monthly Uptime Percentage" means total number of minutes in a calendar month minus the number of minutes of Downtime suffered from all eligible Downtime Periods in a calendar month, divided by the total number of minutes in a calendar month.

The Monthly Uptime Percentage is calculated using the following formula:

((Total number of minutes in a month - Downtime) / Total number of minutes in a month) * 100

"Incident" means (i) any single event, or (ii) any set of events, that result in Downtime.

"Scheduled Downtime" means periods of Downtime related to network, hardware, or Service maintenance or upgrades. SMA will publish notice on http://status.sunny-operations.de/ at least five (5) days prior to the commencement of such Downtime, except Downtimes that relate to fixing security incidents which have to be implemented immediately. Partner will be informed by SMA about such security related fixes near time.

"Service" means the SMA Monitoring-API data provided by SMA under the SMA Monitoring API Contract.

"Service Credit" is the percentage of the Applicable Monthly Service Fees credited to Partner following SMA's claim approval.

"Service Level" means the performance metric(s) set forth in this SLA that SMA agrees to meet in the delivery of the Services.

"Support Window" refers to the period of time during which a Service feature or compatibility with a separate product or service is supported.

§2 Service Level

1. SMA will provide the SMA Monitoring-API to Partner with a total availability of 99.5% over 24 hours in any calendar month of the year provided that respective photovoltaic plants are connected to the network properly. Scheduled Downtime is excluded from the total availability of 99.5%.

2. In the event Partner experiences performance issues due to unavailability, Partner may be eligible to receive Service Credits.

§3 Service Credit Claims

1. In order to receive Service Credits, Partner must notify SMA within thirty (30) days from the end of the calender month in which the alleged Downtime occured. Failure to comply with this requirement will forfeit Partner's right to receive a Service Credit.

2. In order for SMA to consider a claim, Partner must submit the claim to the following E-mail-address: api-backoffice@sma.de, including all information necessary for SMA to validate the claim, including but not limited to: (i) a detailed description of the Incident; (ii) information regarding the time and duration of the Downtime (>5 minutes); (iii) the number and location(s) of affected users (if applicable); and (iv) descriptions of Partner's attempts to resolve the Incident at the time of occurrence.

3. SMA will evaluate all information reasonably available and make a good faith determination of whether a Service Credit is owed. SMA will use commercially reasonable efforts to process claims during the subsequent month and within thirty (30) days of receipt. Partner must be in compliance with the SMA Monitoring API Contract and this SLA in order to be eligible for a Service Credit. If SMA determines that a Service Credit is owed to Partner a Service Credit will be made available.

§4 Service Credits

1. Service Credits are Partner's sole and exclusive remedy for any performance or availability issues for any Service under the SMA Monitoring API Contract and this SLA.

2. Service Credits apply only to fees paid for the Service for which a Service Level in accordance with § 2 has not been met.

3. The Service Credits awarded in any billing month for the Service will not, under any circumstance, exceed the value of Partners monthly service fees for that Service, as applicable, in the billing month.

4. Service Credit

Monthly Uptime Percentage	Service Credit
< 99,5%	25%
< 97%	50%
< 95%	100%

§5 Limitations & Exclusions

1. SMA is not responsible for the availability, the currentness, the correctness, the completeness and the quality of the requested data via SMA-Monitoring API due to the fact that SMA cannot ensure that the photovoltaic plants are connected to the network properly. The total availability mentioned in § 2.1 assumes that the respective photovoltaic plants are connected to the network properly. Furthermore, SMA expressly points out the fact that the data available in the SMA Portals may in particular be incorrect if the configuration and setup of the photovoltaic plants for transmission to the data system of SMA Portals have not been properly carried out or are not properly updated.

2. This SLA and any applicable Service Levels do furthermore not apply to any performance or availability issues:

a) that result from Partner use of the Service available for free;
b) due to Partner failure to implement any Service updates within a reasonable timeframe communicated by SMA;
c) due to factors outside SMA's reasonable control, e.g. natural disaster, war, acts of terrorism, riots, government action, or a network or device failure external to SMA data centers, including at Partner's site or between Partner's site and SMA data center;
d) that result from the use of services, hardware, or software not provided by SMA, including, but not limited to, issues resulting from inadequate bandwidth or related to third-party software or services;
e) caused by Partner use of the Service after SMA advised Partner to modify Partner use of the Service, if Partner did not modify Partner use as advised;
f) during or with respect to preview, pre-release, beta or trial versions of the Service (as determined by SMA);

g) that result from Partner's unauthorized action or lack of action when required, or from Partner's employees, agents, contractors, or vendors, or anyone gaining access to SMA network by means of Partner's passwords or equipment, or otherwise resulting from Partner's failure to follow appropriate security practices;

h) that result from Partner failure to adhere to any required configurations, to use supported platforms, follow any policies for acceptable use, or Partner use of the Service in a manner inconsistent with the features and functionality of the Service (for example, attempts to perform operations that are not supported) or inconsistent with API Specification (Annex 1 of SMA Monitoring API Contract);

i) that result from faulty input, instructions, or arguments (for example, requests to access files that do not exist);

j) that result from Partner attempts to perform operations that exceed prescribed quotas or that resulted from SMA throttling of suspected abusive behavior;

k) due to Partner use of Service features that are outside of associated Support Windows.